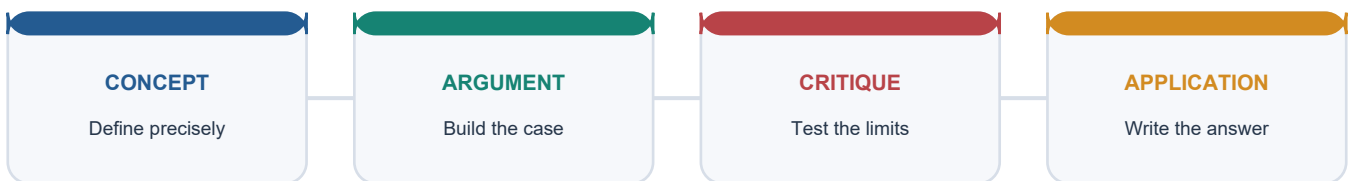


COMPLETE LEARNING SESSION

CVC and CBI - Solved Practice Workbook

SOLVED PRACTICE WORKBOOK

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Workbook Contents

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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CVC and CBI - Solved Practice Workbook

Subject: Polity | **GS Paper:** GS-II | **Control date:** 8 September 2026

Practice discipline: exactly 32 original MCQs before PYQs; ABCD repeated eight times; 128 substantive unique option-specific explanations; 32 unique question-specific traps; verified-PYQ wording and official-key discipline; exactly six original Mains models.

Exactly **32 original MCQs** appear before PYQs. Correct-option sequence: ABCD repeated eight times. Every question has four substantive option-specific explanations and one unique question-specific examiner trap.

BASIC MCQS / REMEDIATION

MCQ 1. Legal identity

Which formulation is legally most accurate?

A. CVC is statutory; CBI is executive-created; DSPE supplies the principal statutory police powers used by CBI investigators. B. CVC and CBI are both constitutional bodies, while DSPE is merely an internal manual. C. CBI was created by the CVC Act, 2003 and CVC by the DSPE Act, 1946. D. CBI's 1963 resolution alone supplies unlimited police power throughout India.

Answer: A.

Option-specific explanations:

- **A:** This preserves all three identities and traces coercive police authority to statute rather than organisational reputation.
- **B:** Neither institution is constitutional, and the DSPE Act is parliamentary law rather than an internal instruction.
- **C:** The statutes do not cross-create the institutions: CVC Act creates statutory CVC; DSPE Act constitutes DSPE.
- **D:** An executive resolution cannot displace offence notification, territory, State consent, criminal procedure or court control.

Examiner trap 1: 'Non-statutory CBI' does not mean 'non-statutory police powers'; always add the DSPE layer.

MCQ 2. Chronology

Consider the following sequence: 1. Special Police Establishment; 2. DSPE Act; 3. CBI resolution; 4. CVC resolution; 5. Vineet Narain; 6. CVC Act. Which order is correct?

A. 2-1-3-4-6-5 B. 1-2-3-4-5-6 C. 1-3-2-4-6-5 D. 4-1-2-3-5-6

Answer: B.

Option-specific explanations:

- **A:** The DSPE Act followed, rather than preceded, the 1941 SPE, and the 2003 Act followed Vineet Narain.
- **B:** The sequence is 1941, 1946, 1963, 1964, 1997 and 2003; the 1998 Ordinance is the interim statutory bridge.
- **C:** CBI's 1963 organisation did not precede the 1946 statutory police establishment.
- **D:** The CVC resolution arose in 1964, after the wartime and CBI stages.

Examiner trap 2: distinguish institutional origin, enactment, judgment and later statutory status rather than sorting only by names.

MCQ 3. Role firewall

Which institution finally determines criminal guilt in a CBI-investigated corruption case?

A. Central Vigilance Commission, because it superintends PC Act investigations B. CBI Director, because the Director administers DSPE C. The competent court after cognizance and trial D. Chief Vigilance Officer of the concerned department

Answer: C.

Option-specific explanations:

- **A:** CVC supervises and advises but neither convicts nor sentences.
- **B:** Administrative command over an investigating establishment does not include judicial guilt determination.
- **C:** Only the court applies the criminal standard of proof and may acquit or convict after due process.
- **D:** A CVO coordinates departmental vigilance and may support referral, not criminal adjudication.

Examiner trap 3: FIR, arrest, charge sheet and conviction are four different legal thresholds.

MCQ 4. CVC composition

Under section 3 of the CVC Act, the Commission consists of

A. one Central Vigilance Commissioner and exactly three Vigilance Commissioners. B. one Central Vigilance Commissioner alone unless Parliament appoints experts. C. a judicial Chairperson, two police members and one finance member. D. one Central Vigilance Commissioner and not more than two Vigilance Commissioners.

Answer: D.

Option-specific explanations:

- **A:** The statutory ceiling is two Vigilance Commissioners, not three.
- **B:** The Act creates a multi-member design and does not condition member appointment on a fresh parliamentary vote.
- **C:** Section 3 uses experience categories, not a compulsory judicial-police-finance seat formula.
- **D:** This reproduces the statutory maximum: one Chairperson plus up to two Members.

Examiner trap 4: 'not more than two' is a ceiling, not a command that both posts must always be occupied.

MCQ 5. CVC qualifications

Which statement best reflects section 3's qualification design?

A. It uses public-service and central public-sector specialist categories, with not more than two appointees from either category if all three offices are filled. B. Every appointee must be a retired Supreme Court judge. C. Only serving Indian Police Service officers are eligible. D. The Act contains no experience qualifications and leaves them entirely to executive rules.

Answer: A.

Option-specific explanations:

- **A:** The two categories cover administration including police administration and specified finance, law, vigilance and investigation expertise, with a category cap.
- **B:** Judicial office is not a mandatory qualification for CVC or VC.
- **C:** IPS experience may fit one route, but section 3 is broader than a serving-police-only rule.
- **D:** The experience fields and category-balance proviso are stated in section 3 itself.

Examiner trap 5: do not confuse a high-integrity office with a compulsory judicial-member model.

MCQ 6. CVC appointment committee

Who is not a member of the committee recommending appointment of the Central Vigilance Commissioner?

A. Prime Minister B. Chief Justice of India C. Union Home Minister D. Leader of Opposition in the Lok Sabha or statutory substitute

Answer: B.

Option-specific explanations:

- **A:** The Prime Minister chairs the three-member recommending committee.
- **B:** The CJI belongs to the CBI Director committee, not the CVC appointment committee.
- **C:** The Union Home Minister is the executive member named by section 4.
- **D:** The opposition member, with the statutory substitute where needed, supplies plural political input.

Examiner trap 6: the easiest wrong option is a true member of another anti-corruption appointment committee.

MCQ 7. CVC tenure and service

A Vigilance Commissioner serves for two years and is then appointed Central Vigilance Commissioner. Ignoring the age ceiling, what is the maximum additional Commission service available under the aggregate rule?

A. Four years, because the CVC appointment restarts the clock B. Three years, because the CVC term is five years C. Two years, because VC plus CVC service cannot exceed four years D. No limit, because only the age ceiling applies

Answer: C.

Option-specific explanations:

- **A:** A later appointment does not erase service already rendered as VC.
- **B:** The ordinary statutory term is four years or age sixty-five, not five years.
- **C:** Two years already served leave at most two years within the aggregate four-year cap.
- **D:** Both a duration cap and an age ceiling apply.

Examiner trap 7: distinguish the ordinary term from the special aggregate VC-to-CVC service ceiling.

MCQ 8. CVC removal

Which is a listed direct statutory ground on which the President may remove a CVC/VC without first using the proved-misbehaviour Supreme Court inquiry route?

A. Disagreement with a CVC minority opinion B. Criticism by a parliamentary committee C. Failure to secure Cabinet confidence D. Being adjudged insolvent

Answer: D.

Option-specific explanations:

- **A:** Internal disagreement is not a removal ground and can be part of multi-member deliberation.
- **B:** Legislative criticism does not substitute for the statutory removal grounds.
- **C:** The office is not held at ordinary Cabinet pleasure.
- **D:** Insolvency is one of the direct objective grounds separately listed in section 6.

Examiner trap 8: keep proved misbehaviour/incapacity separate from insolvency, moral-turpitude conviction, outside paid work, infirmity and prejudicial interest.

MCQ 9. Section 8 functions

Which combination belongs to CVC's section 8 functions?

A. Review relevant DSPE investigations, review prosecution-sanction applications, advise covered central bodies and supervise vigilance administration. B. Conduct every criminal trial involving a Central Government employee. C. Exercise ordinary policing throughout every State without consent. D. Issue binding sentences and disqualify elected representatives.

Answer: A.

Option-specific explanations:

- **A:** These are express supervisory, review, advisory and vigilance-administration functions.
- **B:** Trial belongs to the competent court, not CVC.
- **C:** CVC lacks general police power, and DSPE State-area authority has separate gates.
- **D:** CVC does not possess general criminal-sentencing or electoral-disqualification jurisdiction.

Examiner trap 9: a broad function list becomes wrong when one police or judicial verb is smuggled into it.

MCQ 10. Case-dictation boundary

While exercising superintendence or giving directions, CVC may

A. require DSPE to arrest a named person regardless of evidence. B. monitor systemic progress but not require a particular case to be investigated or disposed of in a particular manner. C. write the final police report for the investigating officer. D. direct the trial court to convict.

Answer: B.

Option-specific explanations:

- **A:** Arrest requires lawful investigative judgment and statutory conditions, not an outcome command.
- **B:** This states the section 8 proviso's system-oversight/particular-case boundary.
- **C:** The final report is the investigating agency's statutory responsibility.
- **D:** CVC cannot direct judicial outcome or displace the court.

Examiner trap 10: 'directions' is true only when read with the immediate non-dictation proviso.

MCQ 11. Advice and disagreement

If a covered organisation disagrees with CVC advice under the section 17 framework, it must

A. obtain State consent. B. treat the advice as automatically void. C. record reasons in writing and communicate them to CVC. D. seek prior approval of the Supreme Court in every case.

Answer: C.

Option-specific explanations:

- **A:** State consent concerns DSPE territorial exercise, not disagreement with vigilance advice.
- **B:** The Act does not permit silent disregard without the accountability step.
- **C:** Written, communicated reasons preserve competent-authority responsibility while enabling scrutiny.
- **D:** Supreme Court inquiry is relevant to removal for proved misconduct/incapacity, not routine advice disagreement.

Examiner trap 11: non-binding advice is not consequence-free advice; reason-giving is the statutory accountability device.

MCQ 12. PIDPI

Which statement accurately describes CVC's whistle-blower role?

A. It arises only from a fully commenced Whistle Blowers Protection Act in every context. B. Anonymous complaints must always be treated as protected PIDPI disclosures. C. PIDPI authorises CVC to convict the person complained against. D. CVC is the designated agency under the 2004 PIDPI Resolution for protected written disclosures within its applicable field.

Answer: D.

Option-specific explanations:

- **A:** The controlled operative authority used here is the PIDPI Resolution; the 2014 Act should not be assumed operative without commencement verification.
- **B:** PIDPI procedure requires identifiable protected disclosure and does not convert anonymous or pseudonymous material into the protected route.
- **C:** The mechanism enables examination and recommended action, not criminal adjudication.
- **D:** This preserves the correct source, designated-agency role and bounded complaint field.

Examiner trap 12: distinguish confidentiality of identity from anonymity of the complaint.

MCQ 13. CVO system

A departmental Chief Vigilance Officer is best described as

A. an internal vigilance node for prevention, complaint scrutiny and disciplinary coordination, with criminal referral where warranted. B. the final criminal court for departmental corruption. C. a constitutional officer superior to CVC. D. an officer with inherent DSPE police power in every State.

Answer: A.

Option-specific explanations:

- **A:** The description captures preventive and punitive vigilance without transferring police or judicial powers.
- **B:** Criminal guilt belongs to courts and service penalties to the competent disciplinary authority.
- **C:** CVOs arise from the vigilance-administration framework, not the Constitution.
- **D:** A CVO does not acquire DSPE jurisdiction merely by coordinating a complaint.

Examiner trap 13: internal access to files is an administrative advantage, not a source of arrest or conviction power.

MCQ 14. DSPE section 2

The baseline territorial police powers of DSPE under section 2 are associated with

A. all States without further authority. B. Union Territories, subject to the Act. C. foreign countries through INTERPOL. D. only offences referred by Lokpal.

Answer: B.

Option-specific explanations:

- **A:** State-area exercise ordinarily requires sections 5 and 6 or an independent court route.
- **B:** Section 2 supplies the Union Territory baseline for the statutory police establishment.
- **C:** INTERPOL coordination does not itself confer domestic or foreign coercive jurisdiction.
- **D:** Lokpal reference is one special route, not the origin of all DSPE powers.

Examiner trap 14: identify territory before discussing consent; Union Territory and State routes are different.

MCQ 15. DSPE section 3

Under section 3, the offences or classes of offences investigated by DSPE are specified by

A. the CVC through its annual report. B. each High Court through standing rules. C. the Central Government by notification. D. the CBI Director through an internal press release.

Answer: C.

Option-specific explanations:

- **A:** CVC reporting reviews functioning but does not replace offence notification.
- **B:** Courts may direct a particular investigation, but section 3 notification is an executive statutory function.
- **C:** The Central Government notification supplies the subject-matter gate.
- **D:** Internal communication cannot substitute for a statutory notification.

Examiner trap 15: a court-directed case still needs legal offence competence; the court order and section 3 notification answer different questions.

MCQ 16. DSPE section 4

Which statement correctly states the current superintendence architecture?

A. CVC superintends every CBI matter, including all special crimes and administration. B. Central Government superintends every PC Act investigation without qualification. C. State Governments jointly administer the CBI Director. D. CVC superintends PC Act investigations; Central Government superintends other DSPE matters; administration vests in the Director, subject to special law.

Answer: D.

Option-specific explanations:

- **A:** CVC's field is corruption-specific and does not include all CBI work or Director administration.
- **B:** Section 4(1) assigns the PC Act investigation field to CVC.
- **C:** State consent limits territorial exercise but does not create joint administration of the Director.
- **D:** This reproduces subsections (1)-(3) and leaves room for Lokpal's referred-matter override.

Examiner trap 16: separate superintendence by subject from administration of the police establishment.

MCQ 17. Sections 5 and 6

For the ordinary executive route into a State, which sequence is most accurate?

A. Section 3 notified offence -> section 5 extension order -> section 6 State consent. B. Section 6 consent -> constitutional amendment -> automatic nationwide power. C. CVC advice -> State Governor's judicial warrant -> trial. D. CBI resolution -> no further jurisdictional step.

Answer: A.

Option-specific explanations:

- **A:** The sequence preserves subject-matter, extension and federal-consent gates.
- **B:** Consent is statutory, not a constitutional amendment, and it does not create automatic nationwide authority.
- **C:** CVC advice and gubernatorial action are not the statutory section 5-6 route.
- **D:** The 1963 resolution cannot override the DSPE Act's territorial limits.

Examiner trap 17: section 5 power and section 6 consent are cumulative, not alternative.

MCQ 18. General and specific consent

Which distinction is correct?

A. General consent comes only from constitutional courts; specific consent comes only from Parliament. B. General consent is standing permission for defined categories; specific consent is tied to a named case, facts or persons. C. General consent applies only to Union Territories. D. Specific consent always continues after any later statutory change regardless of its terms.

Answer: B.

Option-specific explanations:

- **A:** Both are State-government consent instruments in the ordinary DSPE route, not court/Parliament substitutes.
- **B:** The difference is breadth and continuing scope, with both controlled by their precise text.
- **C:** Union Territory baseline comes from section 2 and does not require this State-consent classification.
- **D:** No consent instrument should be read beyond its wording, duration and governing law.

Examiner trap 18: 'general' means standing and defined, not unlimited.

MCQ 19. Withdrawal of consent

A State withdraws general consent after a DSPE investigation was validly instituted. Which is the safest proposition?

A. Every completed investigative act becomes void retrospectively. B. CBI obtains permanent power to start all future cases. C. The existing investigation does not automatically terminate, but new cases ordinarily need a fresh authority route. D. The withdrawal necessarily binds the Supreme Court under Article 32.

Answer: C.

Option-specific explanations:

- **A:** Kazi Lhendup Dorji rejects automatic retrospective destruction of validly initiated investigations.
- **B:** Continuity of an existing case does not create unlimited future jurisdiction.
- **C:** This states prospective withdrawal and preserves the requirement of consent/order for later cases.
- **D:** A State instrument cannot curtail constitutional judicial review.

Examiner trap 19: ask whether the case began before or after withdrawal; timing changes the answer.

MCQ 20. Constitutional court route

According to the Constitution Bench in CPDR, a High Court may direct a CBI investigation without State consent

A. whenever a political party demands it. B. because section 6 has been repealed. C. only after the Union Cabinet certifies failure of State police. D. under Article 226 in exceptional situations, because constitutional judicial review is not controlled by section 6.

Answer: D.

Option-specific explanations:

- **A:** Political demand is not the constitutional threshold.
- **B:** Section 6 remains part of the ordinary executive route.
- **C:** The Constitution does not make Cabinet certification a precondition to Article 226.
- **D:** This preserves the independent constitutional source and the Court's caution.

Examiner trap 20: the court does not 'grant deemed consent'; it exercises a different legal power.

MCQ 21. Vineet Narain

Which was part of the Vineet Narain safeguard trajectory?

- A. Statutory CVC, corruption-investigation oversight, minimum Director tenure and invalidation of the Single Directive.
B. Abolition of State consent for all CBI investigations. C. Conversion of CBI into a constitutional court. D. Automatic five-year tenure for every CBI Director.

Answer: A.

Option-specific explanations:

- **A:** These safeguards addressed institutional independence and later influenced statutory design.
- **B:** The judgment did not erase DSPE section 6 federalism.
- **C:** It strengthened investigation architecture without changing CBI into a court.
- **D:** The two-year floor belongs to the safeguard; conditional extension up to five years came much later.

Examiner trap 21: separate the 1997 judicial directions from the 2021 extension amendment.

MCQ 22. Former section 6A

Subramanian Swamy v Director, CBI (2014) struck down former DSPE section 6A because it

- A. required State consent for Union Territory cases. B. created a rank-based prior-approval shield for senior officers that violated Article 14. C. gave courts power under Article 226. D. required written reasons for CVC disagreement.

Answer: B.

Option-specific explanations:

- **A:** Section 6A concerned Central approval for specified senior officials, not State territorial consent.
- **B:** The Constitution Bench rejected status-based investigative protection as an unequal anti-corruption barrier.
- **C:** Article 226 power was addressed in CPDR, not created by section 6A.
- **D:** Written disagreement belongs to the CVC advice framework.

Examiner trap 22: section 6A and section 6 sound similar but concern different approvals and different governments.

MCQ 23. PC Act section 17A

Section 17A generally concerns previous approval before enquiry, inquiry or investigation when the alleged PC Act offence is relatable to

- A. any private contract dispute. B. every arrest made by police. C. a public servant's recommendation or decision in discharge of official functions, subject to the statutory on-the-spot undue-advantage exception. D. court cognizance after the charge sheet.

Answer: C.

Option-specific explanations:

- **A:** The provision is confined to specified public-function decision allegations under the PC Act.
- **B:** It is not a universal arrest-approval code.
- **C:** This states both the functional nexus and the trap-case exception.
- **D:** Court cognizance is the stage addressed by section 19 sanction.

Examiner trap 23: section 17A is function-linked, not a revived senior-rank shield identical to old section 6A.

MCQ 24. PC Act section 19

Section 19 is best distinguished from section 17A because section 19 primarily governs

A. State consent before DSPE enters a State. B. CVC appointment procedure. C. notification of DSPE offences. D. previous sanction before the court takes cognizance of specified PC Act offences.

Answer: D.

Option-specific explanations:

- **A:** State consent is DSPE section 6.
- **B:** CVC appointment is governed by CVC Act section 4.
- **C:** DSPE offence classes are notified under section 3.
- **D:** Section 19 is the prosecution/cognizance gate, later than investigation approval.

Examiner trap 24: 'prior approval' and 'previous sanction' are not interchangeable merely because both precede something.

MCQ 25. CBI Director appointment

The current section 4A committee for CBI Director appointment consists of

A. Prime Minister, Lok Sabha LoP/largest opposition-party leader, and CJI or nominated Supreme Court judge. B. Prime Minister, Home Minister and Central Vigilance Commissioner. C. President, Speaker and Attorney General. D. CVC, Vigilance Commissioners, Home Secretary and Personnel Secretary.

Answer: A.

Option-specific explanations:

- **A:** This is the post-Lokpal high-powered committee, including the 2014 opposition substitute.
- **B:** This mixes the CVC appointment committee with a CBI post.
- **C:** None of these three together forms the statutory recommendation committee.
- **D:** This resembles the separate section 4C committee for SP-and-above posts, not the Director.

Examiner trap 25: three distinct panels exist in this topic; identify the post before recalling the members.

MCQ 26. Director tenure

Which description of CBI Director tenure is accurate after the 2021 amendment?

A. A flat five-year initial appointment with no review. B. A two-year minimum, with public-interest extension on section 4A committee recommendation and written reasons, one year at a time, up to five years total. C. One year at the pleasure of the Home Minister. D. An unlimited term until age sixty-five.

Answer: B.

Option-specific explanations:

- **A:** The amendment did not replace the initial protected floor with an automatic five-year term.
- **B:** Every element - public interest, committee recommendation, reasons, annual step and aggregate ceiling - matters.
- **C:** The Home Minister is not the unilateral tenure authority under section 4B.
- **D:** The DSPE Director provision uses duration and extension controls, not this age-based formula.

Examiner trap 26: 'maximum possible total' is not the same as 'ordinary tenure' or 'entitlement.'

MCQ 27. Alok Kumar Verma

The central statutory principle applied in Alok Kumar Verma (2019) was that

A. the Director is immune from all inquiry. B. only a document titled 'transfer order' can affect tenure. C. divesting the Director of powers can have transfer-like effect and cannot bypass the section 4A committee safeguard. D. CVC may permanently remove the Director without committee involvement.

Answer: C.

Option-specific explanations:

- **A:** The judgment restored process; it did not grant personal immunity.
- **B:** The Court examined substance and effect rather than the label attached to executive action.
- **C:** This is the precise procedural-insulation principle relevant to the case.
- **D:** CVC's oversight does not confer unilateral permanent-ouster power.

Examiner trap 27: institutional protection attaches to functional displacement, not only formal wording.

MCQ 28. Lokpal interface

Which statement correctly describes Lokpal's relationship with CVC and DSPE?

A. Lokpal permanently administers every CBI case. B. Every complaint automatically becomes a CBI FIR. C. CVC decides guilt in all Group A-B cases. D. Lokpal may route specified preliminary inquiries to CVC and has special superintendence over DSPE matters referred under its Act, subject to non-dictation limits.

Answer: D.

Option-specific explanations:

- **A:** Lokpal's special authority is reference-specific, not universal CBI administration.
- **B:** The Act contains scrutiny and route decisions rather than automatic criminal registration.
- **C:** CVC conducts specified inquiry functions and reports/acts as the statute provides; it does not adjudicate guilt.
- **D:** This preserves section 20 routing, section 25 superintendence and the particular-case boundary.

Examiner trap 28: 'notwithstanding DSPE section 4' applies to referred matters, not to the whole CBI organisation.

MCQ 29. Prosecution and court

Which sequence assigns the correct actor to each output?

A. CBI/DSPE investigates and submits a report; prosecution presents the case; court decides cognizance, trial and guilt. B. CVC investigates every case, prosecutes it and convicts. C. CVO arrests, CBI sentences and Parliament hears the appeal. D. Lokpal's annual report automatically becomes a criminal judgment.

Answer: A.

Option-specific explanations:

- **A:** The sequence respects police, prosecution and judicial functions.
- **B:** CVC has no universal police, prosecution or conviction bundle.
- **C:** CVO lacks general arrest power and CBI lacks sentencing power.
- **D:** Reporting creates accountability but not a judicial decree.

Examiner trap 29: ask what legal document each institution produces - advice, report, charge sheet, prosecution submission or judgment.

MCQ 30. CBI functional categories

Which is a stable, legally safe description of CBI work?

A. CBI is India's universal police for all offences. B. It has anti-corruption, economic-offence and special-crime work, plus support/INTERPOL coordination, each subject to lawful jurisdiction. C. It is the statutory money-laundering authority under PMLA. D. It is identical to the National Investigation Agency.

Answer: B.

Option-specific explanations:

- **A:** The federal and notified-offence architecture excludes universal inherent police power.
- **B:** The categories reflect stable organisational functions without claiming that a label overrides law.
- **C:** PMLA powers belong to the Enforcement Directorate's separate statutory field.
- **D:** NIA operates under a different scheduled-offence statute and jurisdiction design.

Examiner trap 30: organisational specialisation never removes the need to identify the controlling statute.

MCQ 31. Reform design

Which reform package best balances autonomy, federalism and accountability?

A. Remove all reporting, audit and judicial review. B. Allow the Union executive to ignore section 6 whenever it alleges urgency. C. Debate a dedicated CBI law, protect professional capacity, create lawful consent protocols, audit allocation/recusal and strengthen aggregate parliamentary reporting. D. Give CVC power to convict without trial.

Answer: C.

Option-specific explanations:

- **A:** An unreviewable police agency would replace political risk with coercive arbitrariness.
- **B:** Executive convenience cannot amend statutory federal consent.
- **C:** Each reform is matched to a diagnosed weakness and retains reciprocal controls.
- **D:** Conviction without a competent court would violate role separation and due process.

Examiner trap 31: a reform answer earns marks when every autonomy gain has an accountability control.

MCQ 32. Integrated scenario

A new PC Act case concerns an official decision by a State public servant after the State withdrew general consent. No constitutional court has ordered CBI investigation. Which is the most complete starting analysis?

A. CBI may proceed everywhere because PC Act is a Central law. B. CVC's superintendence itself supplies State consent and section 17A approval. C. Withdrawal retrospectively invalidates every older CBI case in the State. D. Check section 3 notification, section 5 extension, fresh section 6 authority, section 17A applicability/exception and the distinct later section 19 sanction stage.

Answer: D.

Option-specific explanations:

- **A:** A Central offence statute does not erase DSPE territorial federalism.
- **B:** CVC oversight cannot substitute for State consent or competent-authority approval under another statute.
- **C:** Prospective withdrawal does not automatically destroy validly initiated older cases.
- **D:** This option identifies subject, territory, entry authority, investigation approval and prosecution as separate gates.

Examiner trap 32: integrated questions are solved by a gate sequence, not by choosing the most powerful-sounding institution.

PYQS AND ANSWER PRACTICE

Verified-PYQ and official-key discipline

The audited repository routing identifies one direct Mains demand and one relevant 2026 objective matching demand. The Mains wording below is reproduced from the controlled official-paper record. The 2026 objective paper is reproduced, but no final official answer letter is claimed because the repository control records only a provisional key.

Verified Mains PYQ - UPSC Civil Services (Main) Examination 2021, GS-II, Question 11 - 15 marks, 250 words

"The jurisdiction of the Central Bureau of Investigation regarding lodging an FIR and conducting a probe within a particular State is being questioned by various States. However, the power of States to withhold consent to the CBI is not absolute. Explain with special reference to the federal character of India."

Demand decoding: Explain the ordinary State-consent rule, the legal effect of withdrawal and the constitutional qualifications; then evaluate the balance in federal terms.

Model answer:

The CBI is an executive-created organisation whose police powers principally arise from the Delhi Special Police Establishment Act, 1946. **Claim:** State consent is a real federal gate in the ordinary route. **Evidence:** sections 5 and 6 permit Central extension of DSPE powers to a State area but require that State's consent; police and public order lie in State List Entries 2 and 1. **Analysis:** general consent facilitates routine cases, while specific consent preserves closer State control. Withdrawal ordinarily operates prospectively for new cases. **Qualification:** in *Kazi Lhendup Dorji v CBI* (1994), investigations validly begun before withdrawal were not automatically terminated.

The State veto is not absolute. **Claim:** constitutional courts retain an independent corrective route. **Evidence:** the Constitution Bench in *State of West Bengal v Committee for Protection of Democratic Rights* (2010) held that High Courts under Article 226 and the Supreme Court under Article 32 may direct CBI investigation without State consent. **Analysis:** judicial review and protection of fundamental rights cannot be curtailed by section 6. **Qualification:** the Court required sparing, cautious and exceptional use, preserving the ordinary responsibility of State police.

Thus Indian federalism rejects both an inherent all-India CBI police power and an unreviewable State shield. Cooperative consent protocols, neutral investigation and exceptional constitutional review provide the defensible balance.

Why this earns marks: It answers both halves of the question with sections 5-6, State List entries, *Kazi Lhendup Dorji* and *CPDR*, and ends with a qualified federal verdict.

Verified Prelims PYQ - UPSC Civil Services (Preliminary) Examination 2026, GS Paper I, Question 63

With reference to the organisations under the Government of India, consider the following details:

Sl. No.	Organisation	Function	Controlling Union Ministry
1	Central Economic Intelligence Bureau (CEIB)	To coordinate between various law enforcement agencies	Ministry of Home Affairs
2	Serious Fraud Investigation Office (SFIO)	To investigate complex corporate frauds	Ministry of Finance
3	Central Bureau of Investigation (CBI)	To preserve values in public life and ensure the health of the national economy	Ministry of Personnel, Public Grievances and Pension

In how many of the above rows are the given details correctly matched? (a) 1 (b) 2 (c) 3 (d) None

Official-key discipline: The question wording is controlled, but the available local answer-key record is provisional. No answer letter, row count or "official solution" is asserted here.

Exam method: Verify each row independently on three axes - organisation, assigned function and controlling ministry/department - before counting. A correct function cannot cure a wrong ministry, and a correct ministry cannot cure an inaccurate mandate.

ORIGINAL MAINS PRACTICE - EXACTLY SIX MODELS

Original Mains 1 - 10 marks, 150 words

Explain why the CBI's organisational creation and its police powers must be traced to different legal instruments.

Model answer:

CBI has a hybrid legal identity. **Claim:** its organisational form is executive-created. **Evidence:** the Government of India Resolution dated 1 April 1963 established the Central Bureau of Investigation and placed the Delhi Special Police Establishment within its investigative structure. **Analysis:** the resolution explains mandate and administration. **Qualification:** it cannot independently create coercive police jurisdiction.

Claim: core police powers are statutory. **Evidence:** the DSPE Act, 1946 constitutes the police establishment; section 2 supplies the Union Territory baseline, section 3 notified offences, sections 5-6 State extension and consent, and section 4 superintendence and administration. **Analysis:** arrest, search and investigation therefore depend on statute and criminal procedure. **Qualification:** calling CBI "non-statutory" does not mean its investigators act without law.

The precise answer is: CBI is organised by resolution, while DSPE provides its principal statutory police power. A dedicated CBI law remains a reform proposal, not current law.

Why this earns marks: The answer states the two legal sources, names operative sections, explains why the distinction matters and avoids the opposite errors of calling CBI statutory or lawless.

Original Mains 2 - 10 marks, 150 words

Differentiate departmental vigilance, CVC oversight, CBI investigation, prosecution and judicial adjudication.

Model answer:

Anti-corruption administration is a sequence, not a single authority. **Claim:** departmental vigilance prevents and processes misconduct. **Evidence:** Chief Vigilance Officers review systems, scrutinise complaints and coordinate disciplinary action. **Analysis:** proximity to records enables early risk correction. **Qualification:** CVOs are neither police nor final disciplinary authorities.

Claim: CVC provides statutory vigilance oversight. **Evidence:** section 8 of the CVC Act authorises supervision, inquiry routing, investigation and sanction review, advice and vigilance-administration control. **Analysis:** it connects departments with the anti-corruption system. **Qualification:** it cannot dictate a particular case or convict.

Claim: CBI/DSPE performs police investigation. **Evidence:** the DSPE Act supplies offence and territorial powers. It may submit a charge sheet or closure report. **Qualification:** State consent or another lawful route may be required.

Prosecution presents the State's case after applicable sanction; the competent court alone takes cognizance, conducts trial and determines guilt.

Why this earns marks: It assigns a distinct verb and output to every actor, uses CVC section 8 and the DSPE Act, and closes with the court's exclusive guilt-determination role.

Original Mains 3 - 15 marks, 250 words

Examine whether the CVC is an effective apex vigilance institution despite its advisory character.

Model answer:

The CVC Act, 2003 makes CVC the statutory apex of Union vigilance, but not a general anti-corruption police force.

Claim: institutional design provides independence. **Evidence:** section 3 creates a multi-member Commission; section 4 uses the PM-Home Minister-LoP committee; sections 5-6 provide fixed tenure, age ceiling and protected removal; expenses are charged on the Consolidated Fund. **Analysis:** these safeguards reduce ordinary executive pleasure.

Qualification: appointment remains executive-heavy, and a four-year ceiling may limit continuity.

Claim: section 8 creates meaningful system reach. **Evidence:** CVC superintends DSPE PC Act investigations, gives bounded directions, causes inquiry/investigation, reviews investigation and sanction progress, advises covered bodies and supervises vigilance administration. CVOs extend prevention into departments. **Analysis:** the Commission can connect systemic risk, case delay and disciplinary response. **Qualification:** it cannot dictate a particular case, exercise universal police power or determine guilt.

Claim: advice can still produce accountability. **Evidence:** section 17 requires written reasons for disagreement; section 14 requires an annual report with a separate DSPE part laid before Parliament. **Analysis:** reason-giving and publicity make non-acceptance reviewable institutionally. **Qualification:** formal reasons and weak follow-up can dilute impact.

Effectiveness therefore depends on timely appointments, professional CVOs, reasoned compliance, sanction tracking and legislative scrutiny. CVC is an important oversight hub, but its credibility rests on implementation rather than statutory status alone.

Why this earns marks: The model balances design, section 8 powers and advisory limits, names the reason-giving and reporting mechanisms, and ties each reform to a diagnosed weakness.

Original Mains 4 - 15 marks, 250 words

Analyse the distinction between section 17A approval and section 19 prosecution sanction under the Prevention of Corruption Act.

Model answer:

Sections 17A and 19 protect different stages of the anti-corruption process and should never be merged.

Claim: section 17A is an investigation-stage gate. **Evidence:** it requires previous approval before enquiry, inquiry or investigation where the alleged PC Act offence is relatable to a public servant's recommendation or decision in discharge of official functions. The competent authority depends on Union, State or other employment. **Analysis:** the provision seeks to protect honest official decision-making from vexatious criminal process. **Qualification:** it is fact-sensitive and does not apply when a person is arrested on the spot for accepting or attempting to accept undue advantage.

Claim: section 19 is a prosecution-stage gate. **Evidence:** it restricts a court from taking cognizance of specified PC Act offences without previous sanction from the competent government or authority. **Analysis:** it screens the transition from completed investigation to criminal prosecution. **Qualification:** sanction is not a finding that the accused is guilty or innocent.

Claim: CVC's role is review, not substitution. **Evidence:** CVC Act section 8 authorises review of pending prosecution-sanction applications. **Analysis:** monitoring can reduce delay. **Qualification:** the competent authority retains its statutory decision.

Thus the correct sequence is: jurisdiction and information threshold -> section 17A where attracted -> investigation -> final report -> section 19 sanction where required -> court cognizance and trial. Clear stage separation protects honest administration without confusing safeguards with impunity.

Why this earns marks: It identifies the trigger, authority, stage and exception for each provision, adds CVC's review role and finishes with a legally ordered lifecycle.

Original Mains 5 - 20 marks, 250 words

Critically analyse the State-consent architecture governing CBI investigations and its implications for Indian federalism.

Model answer:

CBI's State-area jurisdiction reflects a federal compromise: national investigative capacity operates through a police establishment whose ordinary reach is conditioned by State authority.

Claim: consent is a substantive federal gate. **Evidence:** DSPE section 5 permits Central extension of powers to a State area, while section 6 requires State consent; police and public order are State List Entries 2 and 1. **Analysis:** general consent enables routine defined cases, whereas specific consent preserves case-level control. **Qualification:** the instrument's exact offences, persons, territory and riders determine its scope.

Claim: withdrawal ordinarily operates prospectively. **Evidence:** *Kazi Lhendup Dorji v CBI* allowed investigations validly begun before withdrawal to continue. **Analysis:** this protects legal certainty and completed investigative steps. **Qualification:** it gives no permanent authority for new cases after withdrawal.

Claim: the State veto is not constitutionally absolute. **Evidence:** the Constitution Bench in *State of West Bengal v CPDR* held that High Courts under Article 226 and the Supreme Court under Article 32 may direct CBI investigation without consent. **Analysis:** judicial review and fundamental-rights protection cannot be reduced by statute. **Qualification:** the power must be sparing, cautious and exceptional.

Consent can prevent central overreach, yet politically tactical withdrawal may delay inter-State corruption cases. Conversely, automatic Union jurisdiction would erode the State police domain. Reforms should use transparent consent instruments, time-bound requests, joint teams and neutral criteria, without executive circumvention of section 6.

Indian federalism therefore supports a qualified State gate, exceptional constitutional correction and cooperative investigative protocols.

Why this earns marks: The answer uses statutory text, State List entries and two controlling cases, evaluates both centralisation and obstruction risks, and proposes reforms compatible with section 6.

Original Mains 6 - 20 marks, 250 words

Suggest reforms that can strengthen CBI independence and CVC effectiveness without creating an unaccountable investigative state.

Model answer:

Reform must insulate evidence-based investigation from improper control while keeping coercive power answerable to federalism, law, Parliament and courts.

First, clarify legal status. Claim: CBI's resolution-based organisation creates ambiguity. **Evidence:** police powers come through the 1946 DSPE Act, while the bureau dates to the 1963 resolution. **Analysis:** Parliament should debate a dedicated CBI law defining mandate, allocation, interference offences and reporting. **Qualification:** legislation must preserve section 6 consent and Articles 32/226.

Second, secure professional capacity. Claim: staffing, deputation, forensics and prosecution delays weaken outcomes. **Evidence:** complex corruption requires financial, cyber and scientific expertise. **Analysis:** build a stable multidisciplinary cadre, laboratory capacity, fixed investigator tenures and common digital-evidence standards. **Qualification:** capacity needs audit, diversity and external review.

Third, protect investigation governance. Use auditable case allocation, written recusals, documented transfers and non-sensitive publication of policy criteria. *Alok Kumar Verma* shows that transfer-like divestment must respect the statutory committee. Annual Director extensions should retain genuine public-interest reasons and committee scrutiny.

Fourth, strengthen CVC. Professionalise CVOs, track investigation and sanction delay, require substantive reasons when advice is rejected, and improve section 14 aggregate reporting. **Qualification:** CVC must not dictate particular-case outcomes or acquire conviction power.

Fifth, repair federal trust. Adopt lawful model consent protocols, time-bound decisions and joint coordination for multi-State cases.

The target is not "CBI beyond government" but operational insulation plus legal answerability, with courts determining guilt and Parliament examining institutional performance.

Why this earns marks: The model matches each reform to a mechanism of weakness, uses statutory and case evidence, preserves reciprocal controls and rejects both executive command and agency impunity.